

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esther Kim	Team: Team # 3	CCRB Case #: 200505590	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/22/2005 9:56 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/22/2006	Precinct: 60
Date/Time CV Reported Mon, 05/23/2005 9:48 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/22/2005 11:32 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Franklin	00290	924557	PSA 1
2. POM Frederick Drone	01364	933760	060 PCT
3. POM Joseph Flynn	01412	933782	060 PCT
4. LT Luke Anderson	00000	915045	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Monique Lewis	25405	914843	PSA 1
2. POF Mercedes Sandoz	30476	914944	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . LT Luke Anderson	Abuse: Lt. Luke Anderson forcibly stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . LT Luke Anderson	Force: Lt. Luke Anderson pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Frederick Drone	Force: PO Frederick Drone pointed his gun at § 87(2)(b)	C . Unfounded
D . POM Frederick Drone	Abuse: PO Frederick Drone frisked § 87(2)(b)	D . Exonerated
E . POM Frederick Drone	Abuse: PO Frederick Drone searched § 87(2)(b)	E . Substantiated
F . POM Joseph Flynn	Abuse: PO Joseph Flynn frisked § 87(2)(b)	F . Exonerated
G . POM Joseph Flynn	Abuse: PO Joseph Flynn searched § 87(2)(b)	G . Substantiated
H . POM Thomas Franklin	Abuse: PO Thomas Franklin threatened § 87(2)(b) with the use of force.	H . Unfounded
I . POM Thomas Franklin	Abuse: PO Thomas Franklin searched § 87(2)(b)	I . Unfounded

Synopsis

§ 87(2)(b) called the CCRB on May 22, 2005 to report the incident via the call processing system. § 87(2)(b) called the CCRB on May 22, 2005 to report the same incident via the call processing system. § 87(2)(b) and § 87(2)(b) filed civilian complaint reports at PSA1 on the same date.

On May 22, 2005, at approximately 10:00 PM, § 87(2)(b) and § 87(2)(b) were exiting the rear entrance to § 87(2)(b) where § 87(2)(b) resides in apartment #§ 87(2)(b). There was a report for two Hispanic males with guns on the § 87(2)(b) of the building. Lt. Luke Anderson was the first officer to respond, followed by PO Joseph Flynn and PO Frederick Drone of the 60th Precinct. § 87(2)(b) exited the building first, and Lt. Anderson shined a flashlight in his face threw him onto the ground (allegation A), and pointed his gun at him (allegation B). § 87(2)(b) stepped back inside the building. PO Drone and PO Flynn entered the building to look for § 87(2)(b). PO Thomas Franklin, PO Mercedes Sandoz and PO Monique Lewis, officers from PSA1, then arrived to the scene.

Inside the rear of the building, PO Drone handcuffed and pointed his gun in § 87(2)(b)'s face (allegation C). PO Drone patted down § 87(2)(b) (allegation D). PO Drone searched § 87(2)(b) removing his keys from his pockets (allegation E). PO Flynn patted down § 87(2)(b) and searched § 87(2)(b) removing his keys, phone and money from his pockets (allegation F and G). The officers then asked § 87(2)(b) and § 87(2)(b) for ID. Several officers went upstairs to verify § 87(2)(b)'s residence. § 87(2)(b) exited the building with officers to receive a summons § 87(2)(a) 160.50. PO Franklin threatened to kill § 87(2)(b) at his house (allegation H). PO Franklin then searched § 87(2)(b)'s pockets again (allegation I). § 87(2)(b) was released from his handcuffs and permitted to leave. § 87(2)(b) called the CCRB on his cell phone at the scene before filing a complaint at PSA1 with § 87(2)(b).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that allegations A and B be exonerated. § 87(2)(g)
§ 87(2)(g) it is recommended that allegations D and F be exonerated. Though denied by the officers, both PO Drone and PO Flynn indicated on their UF 250s that they searched § 87(2)(b) and § 87(2)(b) respectively. § 87(2)(g)
§ 87(2)(g) it is recommended that allegations E and G be substantiated. § 87(2)(g)
§ 87(2)(g) it is recommended that allegations C, H and I be unfounded.

Summary of Complaint

Civilian Complaint Report

On May 22, 2005, § 87(2)(b) filed a complaint report at PSA1 at 10:30 PM. He stated that he was exiting the back of § 87(2)(b) when he "was attacked by unknown faces and drawn weapons." The officers slammed § 87(2)(b) on the floor, causing minor injury to § 87(2)(b)'s left arm. § 87(2)(b) obtained PO Franklin's shield number #290 (encl. 4a).

§ 87(2)(b) was interviewed at the CCRB on June 10, 2005 (encl. 4b). He is a Hispanic male. On May 22, 2005, at approximately 10:00 PM, outside of § 87(2)(b) § 87(2)(b) and § 87(2)(b) were exiting the building through the backdoor to go to the store. § 87(2)(b) could not recall what he was wearing, but he believed § 87(2)(b) was wearing a red shirt. As soon as § 87(2)(b) opened the door, he could not see because there was a light shining in his face. § 87(2)(b) saw a mattress about fifteen feet away in the back with an officer behind it with a flashlight. § 87(2)(b) was not sure if Lt. Anderson had a gun in his hand at that time. The officer behind the mattress was a white male officer wearing a white shirt who ordered for them not to move. The CCRB later identified this officer as Lt. Luke Anderson. § 87(2)(b) did not move. § 87(2)(b) then stepped back inside the doorway.

Lt. Anderson ran towards § 87(2)(b) grabbed him, and threw him onto the ground. § 87(2)(b) landed on his left shoulder. While on the ground, § 87(2)(b) saw other uniformed officers enter the building to

look for § 87(2)(b). § 87(2)(b) recalled one white male officer who was with Lt. Anderson. Lt. Anderson stood over § 87(2)(b) with his gun pointed at § 87(2)(b)'s face. Lt. Anderson picked § 87(2)(b) off the ground and pulled him into the building. Lt. Anderson closed the rear door.

Inside the building, the other officers patted § 87(2)(b) down before they asked for his ID. One female officer and one male officer then patted down § 87(2)(b). The officers then handcuffed § 87(2)(b) and then asked both § 87(2)(b) and § 87(2)(b) for ID. The officers then started checking around the staircase. Two officers searched § 87(2)(b). The officers removed § 87(2)(b)'s keys from his pockets. A white male officer, who was with Lt. Anderson, then searched § 87(2)(b) removing his keys, phone and money from his pockets. § 87(2)(b) saw this white male officer exit the van with PO Franklin. § 87(2)(b) was not handcuffed. A few officers went upstairs to verify § 87(2)(b)'s address with his mother. When the officers returned, they stated that "everything was good." The officers permitted § 87(2)(b) to leave, however he wanted to wait for § 87(2)(b). The officers stated that § 87(2)(b) could not wait for § 87(2)(b) because he would be obstructing governmental administration. There were two or three black female officers present. One officer was short, dark-skinned, mid-20s, who kept "running her mouth."

Four or five officers then escorted § 87(2)(b) outside where PO Franklin was waiting near a black unmarked police van. PO Franklin never entered the building. § 87(2)(b) stated that he was going to call the CCRB, prompting Lt. Anderson to leave in a marked police car. § 87(2)(b) recognized PO Franklin with shield number #290. He described PO Franklin as a dark-skinned male, 30s, heavyset and he was wearing a uniform. § 87(2)(b) later exited the building without handcuffs. § 87(2)(b) called the CCRB on his cell phone after the officers issued him a summons. The officers left the scene first. § 87(2)(b) and § 87(2)(b) then went to PSA1 to file a complaint against PO Franklin.

Civilian Complaint Report

On May 22, 2005, § 87(2)(b) filed a complaint at PSA1 at 10:30 PM. He stated that unknown cops handcuffed him and his friend. The officers stated that were going to take them to the bay and kill them. The officers put § 87(2)(b) and his friend on the ground and started kicking them. PO Franklin then removed the handcuffs from § 87(2)(b). PO Franklin then stated that next time he would take him to his house and beat him up (encl. 4c).

§ 87(2)(b) was interviewed at the CCRB on June 10, 2005 (encl. 4d). He is a black male.

On May 22, 2005, at approximately 10:00 PM, outside of § 87(2)(b), § 87(2)(b) and § 87(2)(b) exited the back stairwell of the building. § 87(2)(b) was visiting § 87(2)(b) in apartment #§ 87(2)(b). § 87(2)(b) was wearing black jeans and a dark-colored hooded sweatshirt. § 87(2)(b) was wearing a gray hooded sweatshirt and blue pants. The rear of the building was not lit, so § 87(2)(b) was unable to see well. § 87(2)(b) stated he saw a black van and a marked police car parked outside on opposite sides of the building. In total, there were about seven uniformed officers present, including two female officers. All of the officers were black except the lieutenant who was possibly Hispanic or white.

§ 87(2)(b) stepped out of the rear door first, with § 87(2)(b) behind him. Upon exiting the back door of the building, an officer pointed a gun in § 87(2)(b)'s face. The officer with the chrome gun (white shirt, bald, white or Hispanic, 35 years old, tall, and stocky) grabbed § 87(2)(b) and threw his chest against the wall. The CCRB later identified this officer as Lt. Anderson. § 87(2)(b) stepped back into the building, however the rear door remained open. PO Franklin (dark-skinned, tall, and heavyset) was talking to § 87(2)(b) who mentioned the CCRB. PO Franklin said, "I don't care." PO Franklin then grabbed § 87(2)(b) and slammed him twice onto the ground. § 87(2)(b) asked, "What are you doing?"

Inside the building, an officer (not Lt. Anderson or PO Franklin) handcuffed § 87(2)(b) and then searched his upper body, legs and sneakers. The officer removed his ID from his pocket. The CCRB later identified this officer as PO Drone. § 87(2)(b) asked the officer why they were searching him. The officers told § 87(2)(b) to shut up because "that's what they want to do for now." PO Drone told § 87(2)(b) to lie down on the ground and he put his gun in § 87(2)(b)'s face. § 87(2)(b) complied and stated, "Don't shoot me." The officers then brought § 87(2)(b) into the building. § 87(2)(b) did not see officers search § 87(2)(b). The officers then explained to both § 87(2)(b) and § 87(2)(b) that

they received a call about two people jumping someone. § 87(2)(b) asked the officers if they could play back the radio run. The officers said no.

The officers told § 87(2)(b) to go upstairs. The short black female officer then called § 87(2)(b) back downstairs and issued him a summons § 87(2)(a) 160.50. § 87(2)(b) left the building to get the summons from the officers. PO Franklin told § 87(2)(b) that if he ever catches him again, he is “going to kill him at his house.” After PO Franklin removed the handcuffs from § 87(2)(b) he searched him again. PO Franklin searched § 87(2)(b)’s pockets, asking him if he had any weapons. § 87(2)(b) stated, “Your partner already searched me.” The officers then permitted § 87(2)(b) to leave. § 87(2)(b) then exited the building with § 87(2)(b)’s mother. The officers told § 87(2)(b) to leave the scene. § 87(2)(b) received his summons and he called the CCRB outside. Lt. Anderson then left. § 87(2)(b) and § 87(2)(b) then went to PSA1 to file a complaint.

Results of Investigation

Identification of Interviewed Officers

§ 87(2)(b) and § 87(2)(b) both identified PO Franklin by name and shield number. § 87(2)(b) stated that he has had prior interactions with PO Franklin and recognized him. § 87(2)(b) called the CCRB while at the scene on May 22, 2005, and the tape recorded § 87(2)(b) asking a male officer for his name and shield number. The officer provided his name and shield number, which could be heard on the recording as PO Franklin with shield number #290. PO Monique Lewis issued the summons to § 87(2)(b) which identified her as a witness officer. The PSA1 roll call identified PO Sandoz and officer statements corroborated that she was present, therefore she is identified as a witness officer. PO Hiller, though mentioned by PO Franklin, was replaced on the roll call with another officer, who did not match the descriptions provided by the civilians. Since the other officers did not note PO Hiller’s presence in their statements or memo books, she was not interviewed. The sprint report indicated that a lieutenant from the 60th Precinct responded first to the location. The 60th Precinct roll call identified Lt. Anderson as the lieutenant on-duty and he acknowledged his involvement in this incident. PO Drone and PO Flynn’s memo books and their CCRB statements confirmed their presence at the scene.

Officer Statements

Lt. Luke Anderson was interviewed at the CCRB on October 18, 2005 (encl. 5h). He is a white male. He was assigned as the FTU Lieutenant with PO Flynn and PO Drone during the hours of 3:00 PM to 11:35 PM. He was dressed in uniform. He did not have any relevant memo book entries.

On May 22, 2005, at approximately 10:00 PM, Lt. Anderson responded as a backing unit to a job involving a firearm at § 87(2)(b). Lt. Anderson did not recall the specific details of the call or the suspects. PSA1 officers arrived, but he was not certain when they reached the scene. The officers approached the back of the building and observed two males running out the backdoor. Lt. Anderson stated that he approached the back of the building because “it is very common those buildings for suspects to flee out of the back and he knew a gun was involved.” Once Lt. Anderson saw the males running out, he immediately drew his firearm. Lt. Anderson stated that it was possible that he already had his firearm drawn prior to approaching the back door since he was responding to a gun run. Lt. Anderson was not certain if his partners also drew their firearms. Lt. Anderson’s stated, “Police. Don’t move. Get on the ground.” The males did not comply. The shorter male, § 87(2)(b) put his hands up immediately and started to backpedal toward the door. He then ran inside. The door remained open. Lt. Anderson holstered his firearm, grabbed the front of § 87(2)(b)’s shirt and told him to get to the ground. § 87(2)(b) was compliant. Lt. Anderson instructed § 87(2)(b) to spread his hands, which he did. Lt. Anderson then frisked § 87(2)(b) checking his waistband. Lt. Anderson drew his firearm, pointed it to cover the door since the second male ran into it.

Lt. Anderson was then about to put over a transmission that the male had gone back into the building, when the second male walked out of the door with his hands up in the air. PO Flynn and PO Drone then grabbed the second male once he came outside. The officers put the second male against the wall outside of the building. PO Flynn and PO Drone then frisked the second male’s waistband quickly to ensure that he did not have weapons. Lt. Anderson stated that he had reason to suspect these two males because they were fleeing from the location and they did not comply with orders. The officers did not search the males.

The officers then stepped into the building to ensure that they did not get hit by anything from the rooftops, which Lt. Anderson explained is a common practice in that area. One male officer and one female officer from PSA1 also entered the building. Lt. Anderson did not see the PSA1 officers frisk the males. Lt. Anderson was waiting to hear from the radio if these males were involved in the incident, but he believed there was no further information. Lt. Anderson asked for IDs, but he was not certain if IDs were provided. PSA1 officers went upstairs, however Lt. Anderson did not know why. Lt. Anderson believed that the PSA1 officers prepared the UF 250s for the incident since they finalized the job. § 87(2)(b) was very compliant and understanding, while § 87(2)(b) was disruptive and cursing. When Lt. Anderson and his partners left the scene, one PSA1 officer took § 87(2)(b) over to the van to issue him a summons for § 87(2)(a) 160.50

UF 250

PO Flynn completed a stop and frisk report for § 87(2)(b) on May 22, 2005. According to the report, PO Flynn stopped § 87(2)(b) due to his description, furtive movements and the clothes he was wearing. PO Flynn put his hands on § 87(2)(b) placed him on the ground, and against a wall or a car. PO Flynn also frisked and searched § 87(2)(b) because he refused to comply with orders, giving the officers reason to fear for their safety since a violent crime was suspected. PO Flynn also highlighted the nature of the call, which was an assault with a weapon. During the stop, § 87(2)(b) attempted to run and he provided evasive answers to the officers' questions. § 87(2)(b) was not issued a summons at the scene. § 87(2)(b)'s mother verified his identification (encl. 5f).

PO Joseph Flynn was interviewed at the CCRB on October 25, 2005 (encl. 5g). He is a white male. He was assigned to the Amusement Auto with PO Drone during the hours of 3:00 PM to 11:35 PM. He was dressed in uniform. The following memo book entries are relevant to this incident:

2120: 34 § 87(2)(b)

2150: 93Qx2

On May 22, 2005, at approximately 10:00 PM, PO Flynn and his partner responded to the 10-34 call at the location. He was a minute or two behind Lt. Anderson, who arrived to the scene first. PO Flynn and PO Drone walked into the development and they saw Lt. Anderson walking toward the back entrance of the building. Lt. Anderson was directly in front of the door. PO Flynn saw one male, throw open the backdoor and run out. PO Flynn identified this male as § 87(2)(b). Lt. Anderson ran toward the door, knelt down and then stated to this male, "Get down, get down." § 87(2)(b) complied and got down onto the ground. Lt. Anderson had one hand on § 87(2)(b)'s back and told him to stay there. Lt. Anderson did not push or shove § 87(2)(b). § 87(2)(b) stated that he ran because he was scared. There was a second male standing in the doorway. This male, § 87(2)(b) did not come out of the building. PO Flynn frisked one male and PO Drone frisked the other male. PO Flynn did not recall whether he frisked the male inside or outside of the building. PO Flynn did not admit to searching § 87(2)(b) or § 87(2)(b).

The officers entered the building with the two males, and stood near the back stairwell. The officers told the males to stand against the wall and questioned them about where they were coming from and why they were running. The males were not carrying anything. PO Flynn did not recall any weapons. § 87(2)(b) stated that they were coming from a relative's apartment. Uniformed officers from PSA1 then arrived to inside the building. PO Flynn did not recall if the males provided ID. The PSA1 officers went upstairs to verify the residence of the males. PO Flynn did not see the PSA1 officers frisk or search the males. Both males were cursing at the PSA1 officers and the officers warned them to stop. As PO Flynn started walking away, a female PSA1 officer then stated, "Grab their IDs. They are getting C summonses." PO Flynn did not recall any officer threatening the males. The males were not handcuffed. PO Flynn did not recall any officers drawing their guns.

UF 250

PO Drone completed a stop and frisk report for § 87(2)(b) on May 22, 2005. § 87(2)(g)

PO Frederick Drone was interviewed at the CCRB on November 7, 2005 (encl. 5j). He is a white male. He was assigned to the Amusement Auto with PO Flynn during the hours of 3:00 PM to 11:35 PM. He was dressed in uniform and assigned to a marked RMP. The following memo book entries are relevant to this incident:

2120: 10-24 @ rear of § 87(2)(b)

2150: 93Q x2

On May 22, 2005, at approximately 10:00 PM, PO Drone responded to the rear of § 87(2)(b) for a 10-34 with an unknown weapon. PO Drone did not recall which unit responded first. PO Drone did not recall the details of the call. PO Drone explained that when he received the job, the details noted that the suspects were exiting the rear of the building. PO Drone observed two males exiting the rear door. Lt. Anderson was already present at the scene. PO Drone also believed that the uniformed officers from PSA1 were also present.

Lt. Anderson had one male on the ground in front of the rear door. The second male was standing in the doorway of the building. PO Drone did not see how the male ended up on the ground. The officers did not draw their weapons. Lt. Anderson instructed PO Drone and PO Flynn to obtain information from the second male, § 87(2)(b) who was standing in the doorway. The males had their hands in the air, and the officers told them to put their hands behind their backs. The males were then handcuffed. PO Drone believed that the males were then put against the wall inside the building. PO Drone patted down one male, § 87(2)(b) from head to toe. PO Drone did not recall if the frisk was conducted inside or outside of the building. PO Drone stated that since the job detailed a firearm, he frisked the male for the officers' safety. PO Flynn patted down the second male, § 87(2)(b). Both officers prepared UF 250s. The males were not searched. The PSA1 officers did not frisk or search any of the males. PO Drone denied recovering any weapons or observing anything resembling a weapon. PO Drone did not hear any officers threaten the males.

The PSA1 officers took one male upstairs to verify his residence. The officers returned and confirmed the address. One male started acting disorderly towards the end of the incident. The PSA1 officers issued this male a summons. The PSA1 officers ended up finalizing the job and Lt. Anderson, PO Drone and PO Flynn left the scene first.

UF 250

PO Franklin completed a stop and frisk report for § 87(2)(b) on May 22, 2005. According to the report, PO Franklin stopped § 87(2)(b) in regards to a radio run for criminal possession of a firearm. PO Franklin placed § 87(2)(b) against a wall before frisking and searching him. PO Franklin indicated that he frisked and searched § 87(2)(b) in light of the gun run and the recovered knife. PO Franklin noted that § 87(2)(b) was cursing during the incident and he provided inconsistent answers to the officers' questions (encl. 5a).

PO Thomas Franklin was interviewed at the CCRB on June 29, 2005 (encl. 5b). He is a black male. He was re-interviewed on October 27, 2005 to clarify discrepancies between his first statement and the UF 250 (encl. 5c). He was assigned to overtime post #165 with PO Sandoz and PO Lewis during the hours of 6:00 PM to 2:35 AM. The following memo book entries are relevant to this incident:

2140: 10-52 Dispute § 87(2)(b) hallway with firearm

2143: 2 stopped at the location/verify apt. § 87(2)(b)

2153: 10-96 (1x) § 87(2)(b)

On May 22, 2005, at approximately 10:00 PM, PO Franklin received a 10-52 call for a dispute on a § 87(2)(b) hallway with a firearm. He did not recall any other details of the call. PO Franklin walked to the rear of the building because from where he parked the police van, it was the only route to the building. PO Franklin could clearly see two male uniformed police officers and an uniformed lieutenant from the 60th Precinct. These officers were later identified as PO Frederick Drone, PO Joseph Flynn and Lt. Luke

Anderson. PO Franklin did not see any officers with their guns drawn. The males were being questioned but they “weren’t really answering the questions.”

Upon reaching the building, PO Franklin observed the two males already on the ground, however he did not see how the males ended up on the ground. PO Franklin took § 87(2)(b) into a lighted area in the rear stairwell of the building. PO Franklin asked him for ID, which he provided. PO Franklin did not interact with § 87(2)(b) at this time. There was a knife on the ground, and PO Franklin conducted a frisk of § 87(2)(b)’s waistband, sleeves and collar. PO Franklin explained that he frisked § 87(2)(b) because there was a gun run. PO Franklin did not see any other officer frisk or search § 87(2)(b). PO Franklin did not search § 87(2)(b). PO Franklin was unable to explain why he noted on the UF 250 that he had conducted a search. PO Franklin was not sure if § 87(2)(b) was frisked or searched. PO Franklin did not know if a UF 250 was prepared for § 87(2)(b).

Lt. Anderson ordered PO Franklin to verify § 87(2)(b)’s apartment since § 87(2)(b) was being evasive by stating he lived in California. PO Franklin then went upstairs to verify the apartment with PO Sandoz, and PO Lewis. PO Franklin spoke to a woman who said she was § 87(2)(b)’s mother. PO Franklin then returned and informed the supervisor that § 87(2)(b) lived in the building. PO Franklin did not recall if the males were handcuffed. PO Franklin completed a UF 250 for § 87(2)(b).

§ 87(2)(b) was instructed to leave, but he refused. § 87(2)(b) became loud and started cursing in the stairwell. The officers escorted § 87(2)(b) outside to issue him a summons. § 87(2)(b) followed the officers outside of the building and stood in front of the police car. The officers instructed § 87(2)(b) to move. § 87(2)(b) asked for PO Franklin’s name and shield number, which he provided. A PSA1 officers then issued § 87(2)(b) a summons § 87(2)(a) 160.50.

PO Mercedes Sandoz was interviewed at the CCRB on July 29, 2005 (encl. 5d). She is a black female. She was assigned to overtime post #165 with PO Franklin and PO Sandoz during the hours of 6:00 PM to 2:35 AM. The following memo book entry is relevant to this incident:

2140: § 87(2)(b) 10-34 males with guns

On May 22, 2005, at approximately 10:00 PM, PO Sandoz arrived to § 87(2)(b) in response to a 10-34 involving two males with guns. PO Sandoz did not recall any further description of the suspects. When the officers arrived at the rear of the building, PO Sandoz heard an officer state, “Police. Don’t move.” PO Sandoz saw a white male lieutenant from the 60th PCT with two other officers. The CCRB later identified these officers as Lt. Luke Anderson, PO Frederick Drone and PO Joseph Flynn. All of the officers were standing inside the hallway with § 87(2)(b) and § 87(2)(b) near the rear exit door. An officer frisked § 87(2)(b). § 87(2)(b) and § 87(2)(b) were not searched. PO Sandoz did not recall recovering any weapons at the scene.

Lt. Anderson asked PO Sandoz to verify the apartment of § 87(2)(b). PO Sandoz went to the apartment and spoke to § 87(2)(b)’s mother, who confirmed that § 87(2)(b) lived in the building. § 87(2)(b) then followed the officers downstairs. § 87(2)(b) wrote her son’s name in PO Sandoz’s memo book. At this point, § 87(2)(b) started screaming and cursing. He kept saying, “I live here, what’s going on?” An officer then issued § 87(2)(b) a summons § 87(2)(a) 160.50.

When the officers returned to the van, § 87(2)(b) was talking on his cell phone in front of the van. § 87(2)(b) was saying, “I need help now. I want to speak with someone.” The officers asked § 87(2)(b) to move several times before he finally left.

Summons § 87(2)(b)

PO Lewis issued a § 87(2)(a) 160.50 summons to § 87(2)(b) on May 22, 2005 at 9:53 PM outside of § 87(2)(b) (encl. 6b). There is no public record.

PO Monique Lewis was interviewed at the CCRB on July 28, 2005 (encl. 5e). She is a black female. She was assigned to overtime post #165 with PO Franklin and PO Sandoz during the hours of 6:00 PM to 2:35 AM. The following relevant memo book entry is relevant to this incident.

2140: Respond to § 87(2)(b) Dispute with gun § 87(2)(b) back 60 unit

On May 22, 2005, at approximately 10:00 PM, PO Lewis and her partners arrived at the location in response to a radio-run at § 87(2)(b) on the § 87(2)(b). There was a lieutenant and two officers from the 60th Precinct already present. The lieutenant was a bald, tall and bulky. The CCRB later identified him as Lt. Luke Anderson. PO Lewis could not describe the other two officers. The CCRB later identified these two officers as PO Frederick Drone and PO Joseph Flynn. PO Lewis recalled hearing, “Don’t move, don’t move.” At the rear of the building, PO Lewis saw one Hispanic male, § 87(2)(b) lying on his stomach with Lt. Anderson standing over him. PO Lewis did not see how § 87(2)(b) ended up on the ground, but Lt. Anderson did not touch him. PO Lewis did not see any officers’ with their guns drawn. PO Lewis did not see the black male, § 87(2)(b) when she first arrived at the scene.

Lt. Anderson ordered § 87(2)(b) to go inside the building. All the officers went inside the building with § 87(2)(b). § 87(2)(b) was in the hallway with PO Drone and PO Flynn. PO Lewis did not recall seeing § 87(2)(b) on the ground or in handcuffs. § 87(2)(b) and § 87(2)(b) were never frisked or searched.

Lt. Anderson instructed PO Lewis and her partners to go upstairs in order to confirm that § 87(2)(b) did in fact live in the building. The officers went upstairs and spoke to § 87(2)(b)’s mother, who confirmed the information. When the officers returned, Lt. Anderson informed § 87(2)(b) that he was free to leave. While going up the stairs, § 87(2)(b) became loud and boisterous, stating, “Fuck the police.” Lt. Anderson was holding a knife and stated to § 87(2)(b) “I saw you had a knife. When I tell you to get down, you get down.”

PO Lewis then informed Lt. Anderson that she was going to issue him a summons. PO Lewis escorted § 87(2)(b) to the van to run a warrant check. § 87(2)(b) refused to provide his ID. § 87(2)(b)’s mother came outside and provided the information to PO Lewis. While PO Lewis was writing the summons, § 87(2)(b) was talking on his cell phone. PO Lewis gave § 87(2)(b) the summons, and he threw it on the ground. The officers got into the van and § 87(2)(b) stood in front of the van, still talking on his cell phone. PO Franklin exited the van and told § 87(2)(b) to leave. § 87(2)(b) then started screaming, “See, they’re going to kill me.” § 87(2)(b) then walked away. PO Franklin did not threaten § 87(2)(b) and § 87(2)(b).

Police Documents

NYPD Communications CD/Sprint § 87(2)(b)

10-34: Male Assaulted § 87(2)(b)

911 Call: A female caller reported, “Please, we need the police at § 87(2)(b). They got guns and they’re jumping someone. They need to get away from the door. They’re on the § 87(2)(b). There were two Hispanic males jumping a male.”

Radio Message #1: Central reported that there was a report that two Hispanic males with guns assaulted a male on the § 87(2)(b) of § 87(2)(b).

Radio Message #2: The female complainant stated, “They’re not there anymore. I don’t know if there are injuries. I think they’re downstairs. I don’t know if they’re there anymore.”

Radio Message #3: The responding officers reported that two males were stopped in the rear of § 87(2)(b). No one was found on the § 87(2)(b) (encl. 6a).

60th Precinct Roll Call

Lt. Anderson was assigned to duty during the hours of 3:00 to 11:25 PM. He was assigned to RMP 2286. PO Drone and PO Flynn were assigned to duty during the hours of 3:00 PM to 11:35 PM. They were assigned to Amusement Auto in RMP 1750 (encl. 6c).

PSA 1 Roll Call

PO Sandoz, PO Franklin and PO Lewis were assigned to duty during the hours of 6:00 PM to 2:35 AM. They were assigned to RMP 9544 and 9515 (encl. 6d).

Subject Officer History

Lt. Anderson has four substantiated allegations in his ten-year tenure with the NYPD pursuant to CCRB case 200108096. The Board recommended charges. On March 31, 2004, Lt. Anderson pleaded guilty and he was sentenced to five vacation days (encl. 1a).

PO Franklin does not have any substantiated allegations in his six-year tenure with the NYPD. PO Frederick Drone does not have any substantiated allegations in his one-year tenure with the NYPD. PO Joseph Flynn does not have any substantiated allegations in his one-year tenure with the NYPD (encl. 1b-d).

Civilian Prior Criminal History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

Lt. Anderson admitted that he was the first officer at the scene, in addition to being the ranking supervisor and the only officer wearing a white shirt during the incident. Lt. Anderson admitted to his actions, including stopping § 87(2)(b) and § 87(2)(b) and drawing his gun. § 87(2)(g) § 87(2)(b) and § 87(2)(b) described the subject officers of the frisks and searches as white males, specifically not the officer wearing the white shirt. PO Drone and PO Flynn, both white males, admitted to conducting frisks of § 87(2)(b) and § 87(2)(b) which the UF 250s corroborated. Though the officers did not have an independent recollection of conducting searches, the UF 250s that they prepared indicated otherwise. § 87(2)(g) § 87(2)(b) identified the officer who pointed his gun at him as the same officer who searched him. § 87(2)(g) § 87(2)(b) identified PO Franklin as the officer who threatened him and searched him again. § 87(2)(g)

In his CCRB statement, Lt. Anderson stated that he frisked § 87(2)(b) however § 87(2)(b) never reported this allegation to the CCRB. § 87(2)(g)

§ 87(2)(b) in his CCRB statement, PO Franklin stated that he frisked § 87(2)(b) PO Franklin's UF 250 for § 87(2)(b) indicated that he also searched § 87(2)(b) § 87(2)(g)

Disputed Facts

§ 87(2)(g)

Undisputed Facts

It is undisputed that § 87(2)(b) and § 87(2)(b) were exiting the rear of § 87(2)(b) Lt. Anderson stopped § 87(2)(b) outside of the building, while § 87(2)(b) stepped back inside the building. § 87(2)(b) and § 87(2)(b) were frisked. PSA1 officers, including PO Franklin, PO Sandoz and PO Lewis arrived to the scene. § 87(2)(b) was issued a summons.

Credibility

§ 87(2)(g) [REDACTED] In his civilian complaint report, § 87(2)(b) mentioned that guns were drawn and that he was slammed to the ground. In § 87(2)(b)'s civilian complaint report, he stated that both he and § 87(2)(b) were handcuffed. The officers put both § 87(2)(b) and § 87(2)(b) on the ground and kicked them. § 87(2)(b) stated that PO Franklin threatened to kill them. § 87(2)(g) [REDACTED] Moreover, both § 87(2)(b) and § 87(2)(b) identified only PO Franklin on their civilian complaint reports as the subject officer, and they did not list any other possible subject officers. § 87(2)(b)'s CCRB statement did not include a single allegation against PO Franklin, yet PO Franklin was listed as the only subject officer.

In the CCRB statements, § 87(2)(b) stated that Lt. Anderson first used a flashlight to shine at him. Once Lt. Anderson put § 87(2)(b) onto the ground, he then drew his gun. § 87(2)(b) stated that once § 87(2)(b) exited the building, a gun was put into his face. § 87(2)(g) [REDACTED] § 87(2)(b) stated that Lt. Anderson first threw § 87(2)(b) against the wall before PO Franklin slammed him on the ground twice. § 87(2)(g) [REDACTED] § 87(2)(b) did not recount that an officer pointed a gun at § 87(2)(b) or that PO Franklin searched him § 87(2)(b) for a second time. Lastly, § 87(2)(b) did not ever mention any threats issued by PO Franklin. § 87(2)(g) [REDACTED] § 87(2)(b) claimed PO Franklin remained outside with the police van, while § 87(2)(b) stated that PO Franklin searched him and threatened him inside of the building.

§ 87(2)(g) [REDACTED] Lt. Anderson, who admitted to drawing and pointing his gun at § 87(2)(b) § 87(2)(g) [REDACTED] Lt. Anderson also stated that he frisked § 87(2)(b)'s waistband, § 87(2)(g) [REDACTED] PO Drone and PO Flynn admitted to frisking § 87(2)(b) and § 87(2)(b) respectively, but denied conducting any searches. § 87(2)(g) [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

Allegations Not Pleaded

In § 87(2)(b)'s initial complaint narrative, he stated that the officers did not allow him to see their shield numbers. § 87(2)(g) [REDACTED] Also, § 87(2)(b) asked a male officer for his name and shield number. The officer identified himself as PO Franklin with shield number #290, which was audible on the call processing recording. At the end of the call processing recording, § 87(2)(b) stated that PO Franklin would not let him obtain his badge number, which was already provided on the call processing recording. § 87(2)(g) [REDACTED] [REDACTED] [REDACTED]

§ 87(2)(b) stated in his CCRB interview that PO Franklin slammed § 87(2)(b) on the ground twice. § 87(2)(g) [REDACTED] [REDACTED]

§ 87(2)(g)

Allegation A: Lt. Luke Anderson forcibly stopped § 87(2)(b) and § 87(2)(b)

Between Lt. Anderson and § 87(2)(b)'s statements, it is undisputed that Lt. Anderson used some level of physical force to bring § 87(2)(b) to the ground. Lt. Anderson claimed that he grabbed the front of § 87(2)(b)'s shirt and ordered him to the ground. According to Barry Kamins' *Search and Seizure*, a level-III stop, or forcible stop occurs when an individual is actually or constructively detained by nature of significant interruption of his liberty of movement, including physically subduing an individual (encl. d). This type of stop requires reasonable suspicion that the person is committing, has committed or is about to commit a crime. The sprint, § 87(2)(g), clearly identified the female caller as a resident of § 87(2)(b) specifically the § 87(2)(b). The ANI ALI also provided a call back number for the female complainant. Kamins specifies that a 911 call from an identified citizen describing a man with a gun at a specified location will provide the officer with reasonable suspicion (encl. e).

It is undisputed that there was a report of two Hispanic males with guns on the § 87(2)(b) of § 87(2)(b) at 9:18 PM by a female resident of the § 87(2)(b). The officers responded within five minutes to the location, observing § 87(2)(b) and § 87(2)(b) exiting the rear of the location. § 87(2)(g)

Therefore, it is recommended that allegation A be exonerated.

Allegation B: Lt. Luke Anderson pointed his gun at § 87(2)(b)

According to Barry Kamins' *Search and Seizure*, an officer can draw his weapon to effect a stop to ensure his safety and neutralize the threat of physical harm (encl. a). § 87(2)(g)

it is recommended that allegation B be exonerated.

Allegation C: PO Frederick Drone pointed his gun at § 87(2)(b)

Besides § 87(2)(b) no other civilian or officer recalled observing PO Drone draw his gun, much less point it at § 87(2)(b) during the incident. PO Drone denied the allegation. § 87(2)(g)

it is recommended that allegation C be unfounded.

Allegation D: PO Frederick Drone frisked § 87(2)(b)

Allegation F: PO Joseph Flynn frisked § 87(2)(b)

A female caller, whose call back number was listed on the sprint, reported that two Hispanic males with guns were assaulting a male on the § 87(2)(b) of § 87(2)(b). The female caller was unable to provide further descriptions and she believed that the males had left the floor. § 87(2)(g)

PO Drone and PO Flynn admitted that they frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g)

The officers also indicated that they frisked the males for their own safety, § 87(2)(g)

§ 87(2)(g)

it is recommended that allegations D and F be exonerated.

Allegation E: PO Frederick Drone searched § 87(2)(b)

Allegation G: PO Joseph Flynn searched § 87(2)(b)

§ 87(2)(g)

PO Drone denied searching § 87(2)(b) and PO Flynn denied searching § 87(2)(b). The officers' both prepared UF 250s for the incident, § 87(2)(g). Both officers did not have an independent recollection of searching § 87(2)(b) and § 87(2)(b) however the officers indicated on the UF 250s that they searched the males due to the report of males with firearms at the location.

PO Drone stated that he did not see anything on the males indicative of a weapon. PO Flynn also denied seeing the males with anything in their hands and he also denied recovering any weapons. Lt. Anderson also did not mention seeing any weapons, however PO Franklin noted on his UF 250 that he observed a knife at the scene, which he also reiterated in his CCRB statement. The other PSA1 officers did not corroborate PO Franklin's account.

Since PO Drone and PO Flynn denied searching § 87(2)(b) and § 87(2)(b) during their CCRB interviews, they were unable to explain the discrepancies in their UF 250s. All of the interviewed officers in this case denied that any searches were conducted of either § 87(2)(b) or § 87(2)(b). In addition, PO Drone and PO Flynn not only denied seeing any weapons at the scene, they also did not mention seeing any suspicious bulges. § 87(2)(g)

Barry Kamins notes that once a frisk is conducted and any reasonable basis for the officer's fear for his safety has abated, the officer cannot continue to search a suspect (encl. d). § 87(2)(g)

it is recommended that allegations E and G be substantiated.

Allegation H: PO Thomas Franklin threatened § 87(2)(b) **with the use of force.**

Allegation I: PO Thomas Franklin searched § 87(2)(b)

According to § 87(2)(b), § 87(2)(b) was outside receiving his summons when PO Franklin threatened him to kill him and searched him. § 87(2)(b) stated that PO Franklin never entered the building. In fact, § 87(2)(b) stated that he went outside to where PO Franklin was waiting near the police van. PO Franklin stated that he entered the building and the evidence in this case indicates that PO Franklin was present in the building for at least part of the incident. While § 87(2)(b) mentioned the threat allegation in both his civilian complaint report and his CCRB statement, § 87(2)(b) never mentioned hearing it during this incident. § 87(2)(g)

PO Franklin denied issuing any threats. The other officers denied hearing any such threats. § 87(2)(g)

it is recommended that allegation H be unfounded.

§ 87(2)(g)

While PO Drone prepared a UF 250 regarding his conduct, PO Franklin did not prepare a UF 250 to support § 87(2)(b)'s allegation. § 87(2)(g)

it is recommended that allegation I be unfounded.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: